

23PSCV01027 23PSCV01027

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-07

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Case Number: 23PSCV01027 Hearing Date: July 7, 2026 Dept: O

Tentative Ruling

MOTION FOR ORDER COMPELLING COMPLIANCE WITH WRIT OF ATTACHMENT

is GRANTED insofar as compelling compliance with levy (State Farm was to give the levying officer a garnishee's memorandum); the court requests Plaintiff file a proposed order. Issue of OSC Re Contempt and Fees/Costs are TBD.

Background

This is an unlawful detainer/breach of commercial lease agreement case.

On April 5, 2023, Plaintiff filed CELIA C. BARRERA, as Trustee of the Celia C. Barrera Living Trust filed suit against Defendant DANIEL BETANCOURT for UD arising from the alleged breach of the parties' March 8, 2021 written commercial lease agreement. (The lease term was 7 years, but Defendant allegedly breached the agreement by failing to pay in April 2023.)

On July 10, 2023, a notice of settlement was filed.

On January 13, 2025, Plaintiff filed a 'DECLARATION OF DARREN P. TRONE IN RESPONSE TO OSC RE DISMISSAL AFTER SETTLEMENT' stating, in relevant part, the following: "Defendant DANIEL BETANCOURT was ultimately unable to complete the terms of the written settlement agreement between the parties. On or about December 9, 2024, Plaintiff regained possession of the property when BETANCOURT surrendered the keys to Plaintiff. Possession of the property is no longer in issue, and no other person other than Plaintiff is in

possession of the property. Plaintiff plans to file an amended complaint to reclassify this action from unlawful detainer to general unlimited civil.”

On February 6, 2025, Plaintiff filed a first amended complaint (FAC) for breach of commercial lease for unpaid leasehold obligations of approximately \$68,475.69 and for the sum of \$712,000 for the unpaid rent and all other amounts (and other costs). The FAC alleges, inter alia, that “In or about June 2023, the parties entered into a written tentative settlement agreement that allowed BETANCOURT to retain possession of the Premises based on certain conditions, primarily the repayment of \$94,304.76 in back rent, late fees, CAM charges, utilities and fees. On or about October 31, 2024, a fire occurred at the Premises due to faulty electrical wiring installed by BETANCOURT. In or about December 2024, BETANCOURT further breached the lease by abandoning the Premises and ceasing to pay any further rent under the terms of the Lease and settlement agreement.” (FAC p. 3.)

On August 15, 2025, the court granted Plaintiffs’ application for writ of attachment.

On September 25, 2025, this Court issued a Writ of Attachment (Judicial Council Form AT- 135) in favor of Plaintiff, directing levy on \$68,475.69 insurance proceeds held by State Farm owed to Defendant.

October 22, 2025, Plaintiff filed an amended right to attach order and order for issuance of writ of attachment after hearing.

On April 6, 2026, the instant motion was filed.

On June 1, 2026, an opposition was filed.

On June 23, 2026, a reply was filed.

Discussion

As set forth in the motion, Plaintiff obtained

the requisite bond, and the Writ and Notice of Attachment were properly served on State Farm via the levying officer (Sacramento County Sheriffs Office) in November 2025. However, as argued by Plaintiff, "State Farm incorrectly routed the attachment levy to its 'ADP wage garnishment department,' which lacks authority, knowledge and the ability to process prejudgment attachments on insurance proceeds. Despite multiple follow-up communications, State Farm has failed to withhold the funds, file a Memorandum of Garnishee (AT-167/EJ-152), or otherwise statutorily comply." (Motion p. 3:9-13; see also Motion p. 5:8-10 ["State Farm's insistence on treating the matter as a wage garnishment instead of an attachment levy, even after their mistake was pointed out to them."].) As further argued by Plaintiff, the "Sheriff returned the writ unexecuted due to State Farm's non-response, and the proceeds remain at risk of improper disbursement to Defendant, or more likely, were already dispersed in violation of the attachment levy." (Motion p. 3:15-17.)

In opposition, State Farm contends "it had not taken any action inconsistent with the attachment order" (Opp. p. 1:26) because "no proceeds had been paid to Daniel Betancourt." (Opp. p. 3:6-7.) More specifically, and as iterated in State Farm's letters to Plaintiff on 2/27/26 and 5/19/26, the payment ledger reflects only two categories of payments: \$6,950.60 paid directly to ServiceMaster for mitigation/remediation services, and \$21,787.11 paid directly to Gates, Gonter, Guy, Proudfoot & Muench LLP for defense costs.[1] Based thereon, State Farm argues Plaintiff is baselessly accusing State Farm of noncompliance and contempt.

But the writ was served and State Farm failed to file the required Memorandum of Garnishee. (See generally Reply [nine references to State Farm not filing this Memorandum of Garnishee].)

To the explain the process, the court turns to the 'California Practice Guide: Enforcing Judgments and Debts' ("Guide") section 6:394 of the Guide. As explained in the Guide, there are four basic methods by which a writ of execution can be levied on property so as to create an execution lien thereon: (1) physical seizure of the property, (2) garnishment, (3) recording a copy of the writ and notice of levy; and (4) delivery of a copy of the writ to the levying officer. As to which of the four methods apply, that turns on some factors: whether the property is personal or real, tangible or intangible, and, of

relevance here, whether the property is in the possession of the judgment debtor or a third person. If tangible personal property (i.e., money) is in the possession or control of a third person (here, State Farm since Defendant/debtor does not have the \$68,475.69 insurance proceeds), "the levying officer may not seize it. Rather, the third person must be served with a copy of the writ and notice of levy (garnishment [])."¹ ([6:396], italics original.) This process is further explained in California Jurisprudence. (30 Cal. Jur. 3d Enforcement of Judgments § 150.) As set forth in Chapter 5, entitled 'Duties and Liabilities of Third Persons After Levy':

At the time of service of a copy of the legal process on a third person, the levying officer must request the third person to give the levying officer a garnishee's memorandum containing the information required. Within 10 days after the legal process is served, the third person must mail or deliver the garnishee's memorandum to the levying officer whether or not the levy is effective.² The garnishee's memorandum must be executed under oath and contain the information prescribed by statute. (emphasis added.)

Per Code of Civil Procedure section 701.030(b), the memorandum must include various information such as a description of claims and rights of other persons to the property or obligation levied upon that are known to the third person and the names and addresses of those persons and a description of any property of the judgment debtor sought to be levied upon that it not delivered to the levying officer and the reason for not delivering the property. As further explained, if a third person (here, State Farm), does not give the levying officer a garnishee's memorandum within the time period required, or does not provide complete information, the third person may, in the court's discretion, be required to pay the costs and reasonable attorney's fees incurred in any proceedings to obtain the information required in the garnishee's memorandum.

With that, State Farm must have filed a Memorandum of Garnishee, and it does not state it has.

Based on the foregoing, as the court has inherent authority to enforce its writs and may order compliance on noticed motion, the court grants the motion insofar as compelling State Farm to comply with the valid Attachment Order.

As for Plaintiff's request in issuing an Order to Show Cause why State Farm should not be held in contempt for their alleged willful failure to comply and Plaintiff's request to recover fees and

costs associated with bringing this motion,[2]

the court is not inclined to grant either of those requests as the moving papers are somewhat unclear. The moving papers also seem to argue that the money must have been given to the levying officer. (See e.g., Motion p. 3:24 ["must withhold and deliver the property"]; see Motion p. 2:2-3 ["by withholding and delivering to the levying officer (or as otherwise directed) the attached insurance proceeds owed to Defendant Daniel Betancourt up to the amount of Plaintiffs claim"]; p. 4:5-7 ["property that should have been withheld and delivered pursuant to the levy"]; see p. 4:13-15 ["deliver the withheld funds to the levying officer or as otherwise directed by the Court."]; see also Reply p. 2.) The court will ultimately decide the matter after the hearing.

Conclusion

Based on the foregoing, the motion is granted insofar as compelling compliance with the levy.

[1] As to this, Plaintiff in reply argues that the question of whether those payments "benefit" Defendant within the meaning of the attachment order was for the garnishee to address in a Memorandum of Garnishee. (Reply p. 3:1-0-18.)

[2] Plaintiff avers costs are recoverable under § 488.090, but the statute does not contain such discussion.